



U.S. Department
of Transportation

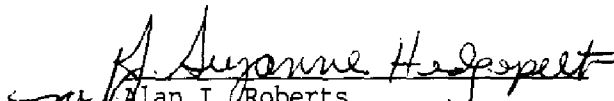
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9064 (EXTENSION)
FIFTH REVISION October 10, 1990

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9064 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to January 31, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

NOV - 8 1995
(DATE)

Dist: FHWA USCG

EXEMPTION HOLDER

APPLICATION DATE

Corning Incorporated
Corning, NY

June 29, 1994

Amalgamet Canada
Toronto, Ontario, Canada
(U.S. AGENT: AMC Chemicals
Ridgefield, NJ)

July 6, 1994

PPM Pure Metals GMBH
Goslar, West Germany
(U.S. AGENT: AMC Chemicals
Ridgefield, NJ)

July 6, 1994



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DOT-E 9064
(FIFTH REVISION)

1. Corning Incorporated, Corning, New York, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of certain corrosive liquids for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes shipments in a glass container not to exceed 5-3/8 gallon capacity, which in turn, is placed in a cushioned cylindrical steel overpack, which is then packed in a cushioned plywood box, of which no more than four can be overpacked in a compartmented wooden outer box, and provides no relief from any regulation other than as specifically stated. Each of the following is hereby granted the status of party to this exemption:

Preussag AG Metall, Goslar, West Germany - PTE-1.
Amalgamet Canada, Division of Premetalco Inc., Toronto,
Ontario, Canada - PTE-2.

2. BASIS. This exemption is based on Corning Glass Works' application dated March 1, 1989, submitted in accordance with 49 CFR 107.103 and 107.105 and the public proceeding thereon and supplemental letter dated April 24, 1990. The granting of party status is based on the following application submitted in accordance with 49 CFR 107.111 and the public proceeding thereon:

Preussag AG Metall's application dated March 1, 1989.
Amalgamet Canada, Division of Premetalco Inc.'s application
dated March 1, 1989.

3. HAZARDOUS MATERIALS (Descriptor and class). Germanium Tetrachloride, Silicon Tetrachloride, Phosphorus Oxychloride, Phosphorous Trichloride, and Titanium Tetrachloride; classed as corrosive material; and other corrosive materials specifically identified to, and acknowledge in writing by the Office of Hazardous Materials Transportation.

4. PROPER SHIPPING NAME (49 CFR 172.101). Corrosive liquid, n.o.s.; or the specific chemical name or generic commodity description, as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.3a, 173.245, 173.247, 172.271.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle and cargo vessel.

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7. SAFETY CONTROL MEASURES. Packaging prescribed comprises three components: Exterior - Plywood box (modified DOT Specification 19A); Intermediate-Two-piece cylindrical steel overpack (modified DOT Specification 6D), internally cushioned to protect primary glass container; Primary - Inside glass container not to exceed 5-3/8 gallon capacity, surrounded by vermiculite cushioning and enclosed in a bag of polyethylene film. (Closure consists of a teflon valve system). Intermediate steel overpacks are cushioned with expanded polystyrene slab stock to minimize movement. The completed exterior plywood box is securely mounted on a wood pallet (to facilitate handling) and then further reinforced by means of vertical steel strapping. Alternatively, a maximum of four of the exterior units may be further enclosed in a compartmented outside wood box which is permanently attached to a wood pallet. Detail of containment design and photographs and drawings of same are shown in petitioner's application, with modifications to glass container, cylindrical steel overpack, plywood box and compartmented outside wood box as detailed in letter dated January 8, 1987.

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. A copy of this exemption must be carried aboard each cargo vessel and motor vehicle used to transport packages covered by this exemption.

c. The following additional requirements apply to the transportation of materials requiring special packaging approval as specified in 49 CFR 173.3a:

1. This exemption serves as a special packaging approval under the provisions of 49 CFR 173.3a(a)(3) for the shipment of phosphorous oxychloride, phosphorous trichloride and titanium tetrachloride and germanium tetrachloride;

2. For highway transportation, each motor carrier used to transport packagings authorized by this exemption must have a safety rating, as assigned by the Office of Motor Carrier Safety Field Operations (OMCSFO), Federal Highway Administration, of "Satisfactory". Written verification of the safety rating for each motor carrier must be obtained at least once each year.

A copy of the safety rating notification letter for each motor carrier, as received from OMCSFO must be submitted with the annual report required by this exemption;

3. For water transportation, the packagings must be stowed "on deck" only, as far from crew's quarters, other manned spaces and air intakes as reasonably practical.

4. In addition to the requirements of 49 CFR 171.15 and 171.16, the Exemptions Branch, Office of Hazardous Materials Transportation (OHMT) must be notified of any incident involving damage to the packaging or loss of contents of materials shipped under this exemption;

5. The Exemptions Branch, OHMT shall be advised of the causes of the incident and any remedial action taken, as a result of the incident as soon as practical after its occurrence; and

6. The Exemptions Branch, OHMT must be advised annually, within 30 days after the end of the calendar year, of the shipping experience of the material covered by this exemption. Failure to comply may result in the immediate suspension of this exemption.

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Office of Hazardous Materials Transportation as soon as practicable.

10. EXPIRATION DATE. March 31, 1991.

Issued at Washington, D.C.:


Alan I. Roberts
Director
Office of Hazardous Materials
Transportation

OCT 10 1990

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Branch.

Dist: FHWA, USCG.